

26SMCV01371 26SMCV01371

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 6, 2026

CASE NUMBER

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MOTION

Protective Order

MOVING PARTIES

Defendants Matthew Nussbaum and Americana Partners, LLC

OPPOSING PARTY

Plaintiff L&S Advisors, Inc.

MOTION

This case arises from allegations that Defendant Nussbaum, Plaintiff's former employee, misappropriated Plaintiff's confidential, proprietary client/trade secrets information and transferred the information to Defendant Nussbaum's new employer, Defendant Americana.

On March 16, 2026, Plaintiff L&S Advisors, Inc. ("Plaintiff" or "L&S") filed suit against Defendants Matthew Nussbaum ("Nussbaum") and Americana Partners, LLC ("Americana") alleging two causes of action for (1) breach of contract and (2) misappropriation of trade secrets.

On June 25, 2026, the Court overruled Defendants' demurrer to the Complaint. In so holding, the Court rejected Defendants' arguments that the confidential and proprietary information alleged is uncertain, or so broad, as to effectively restrain fair competition.

Defendants now essentially reiterate the same arguments, arguing that L&S's discovery requests seeking the production of its own trade secret information back from Defendants are too vague and overbroad to discern what specific trade secrets were allegedly misappropriated, in violation of Code of Civil Procedure section 2019.210, which requires that the allegedly misappropriated trade secrets be described with reasonable particularity before any discovery may be commenced.

As such, Defendants move for a protective order to stay discovery with respect to the trade secret information at issue unless and until L&S identifies the trade secret information sought with requisite particularity.

Plaintiff opposes the motion and Defendants reply.

ANALYSIS

Per Code of Civil Procedure section 2025.420, subdivision (a), "[b]efore, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.420, subd. (a).) Section 2016.040 provides that "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by

telephone, or by videoconference, to informally resolve each issue presented by the motion.”

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420, subd. (b).) “Generally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in [the discovery procedure] clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Emerson Electric Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.) “A party seeking the protective order must show by a preponderance of the evidence that the issuance of a protective order is proper.” (Stadish v. Superior Court (1999) 71 Cal.App.4th 1130, 1145.)

Defendants essentially argue that, although L&S has defined the terms, because it has failed to provide Defendants with a list of all clients, prospective clients, referral sources, etc. it seeks from Defendants, Defendants cannot “even begin a search for responsive documents.” (Motion at p. 7.)

The Court disagrees. Upon review, the Court finds that Plaintiff has adequately defined the trade secret information allegedly misappropriated that it now seeks through discovery. Further, requiring Plaintiff to provide Defendants with a list of all of its clients, prospective clients, and referral sources would not only defeat the purpose of discerning through the discovery process what information Defendants actually took, but it would also defeat the purpose of the entire litigation by providing Defendants with the very information Plaintiff seeks to protect and keep secret.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies Defendant’s motion for a protective order.

Further, because no party has moved to seal the documents filed conditionally under seal, the Court will unseal and post the documents to the public docket.

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

August 6, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court